

25LBCV00347 25LBCV00347

County: los-angeles

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Case Number: 25LBCV00347 Hearing Date: August 11, 2026 Dept: S27

1. Background

Facts

This is a negligence action arising out of a slip and fall incident that occurred on or about September 2, 2023, wherein Plaintiff Maria Franco ("Plaintiff") sustained injuries and damages. On February 11, 2025, Plaintiff filed the operative Complaint against Defendants 7-Eleven Store #20679; 7-Eleven, Inc.; Asha Investments, Inc. d/b/a 7-Eleven; and DOES 1 through 100 (collectively, "Defendants"), asserting a sole cause of action for Premises Liability – Negligence.

Plaintiff Maria Franco died on June 22, 2026. Now, Plaintiff's daughter, Blanca Estela Perez moves to substitute into this action in Plaintiff's place, and to be appointed Plaintiff's successor-in-interest.

2. Legal

Standard

"On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Code Civ. Proc., § 377.31. The person seeking to continue the action in the decedent's name must file an affidavit that complies with Code of Civil Procedure Section 377.32(a)(1)-(7). "Except as otherwise provided by statute, a cause of action for or against a person is not

lost by reason of the person's death, but survives subject to the applicable limitations period." Code Civ. Proc., § 377.20.

3. Motion

to Substitute Personal Representative and to Appoint Blanca Estela Perez as Successor-In-Interest

Blanca Estela Perez ("Ms. Perez") moves the Court for an order appointing her as the successor-in-interest of Plaintiff, who is now deceased. (Mot., p. 3.) Ms. Perez contends Plaintiff commenced this action during her lifetime and that her death does not automatically terminate Plaintiff's claims. (Mot., p. 3.) Ms. Perez contends she is the proper beneficiary and successor-in-interest as she is Plaintiff's surviving child and Plaintiff died without leaving a will. (Mot., p. 5.)

Here, Plaintiff's cause of action survives her death.

As to the declaration under Code of Civil Procedure section 377.32, the declaration must state all of the following:

(1) The decedent's name.

(2) The date and place of the decedent's death.

(3) "No proceeding is now pending in California for administration of the decedent's estate."

(4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5) Either of the following, as appropriate, with facts in support thereof:

(A) “The affiant or declarant is the decedent’s successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent’s interest in the action or proceeding.”

(B) “The affiant or declarant is authorized to act on behalf of the decedent’s successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent’s interest in the action or proceeding.”

(6) “No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.”

(7) “The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.”

(Code of Civ. Proc. § 377.32, subd.

(a)(1)-(7).)

While Ms. Perez submits a declaration and certified copy of Plaintiff’s death certificate, the Court notes some issues. First, Ms. Perez attaches a certified copy of Plaintiff’s death certificate to her declaration as Exhibit A. Ms. Perez identifies Maria Franco as the decedent, stating she died on June 22, 2026, in Long Beach, California. (Perez Decl., ¶¶ 2, 3.) However, the death certificate identifies Plaintiff’s date of death as February 22, 2026. (See Perez Decl., Ex. A.)

Second, Ms. Perez declares she is the surviving child and issue of Plaintiff, and therefore is Plaintiff’s successor-in-interest. (Perez Decl., ¶ 9.) Ms. Perez confirms “No other person has a superior right to be substituted for Maria Franco in this pending action.” (Perez Decl., ¶ 11.) However, the death certificate identifies “Paola Perez” as Plaintiff’s daughter and “Pablo Martin Perez” as Plaintiff’s husband. (See Perez Decl., Ex. A.) Ms. Perez does not address whether these two individuals have superior right to be substituted for Plaintiff in this action.

Ultimately, the Court finds Blanca

Estela Perez has not successfully met the requirements of section 377.32. It is unclear whether there is a person with a superior right to be substituted for Plaintiff, and the date of death on the death certificate conflicts with the date of death Ms. Perez declares.

4. Conclusion

For the foregoing reasons, Ms.

Perez's motion to substitute the personal representative for Plaintiff and appoint Blanca Estela Perez as successor-in-interest is DENIED without prejudice.

Moving party is ordered to give notice.